

Unit 3

3

IPR Regulation Authorities in India

Syllabus

Introduction to different IPR regulation authorities in India: Official Machinery, Controller/
Governing bodies, Powers and Functions. Filing procedure of each type of IPR in India.

Contents

- 3.1 Introduction to Different IPR Regulation Authorities in India
- 3.2 The Official Machinery, Controller / Governing Bodies
- 3.3 Powers and Functions
- 3.4 Filing Procedure of Each Type of IPR in India
- 3.5 Multiple Choice Questions with Answers
- 3.6 Short Questions and Answers
- 3.7 Descriptive Questions and Answers

3.1 Introduction to Different IPR Regulation Authorities in India

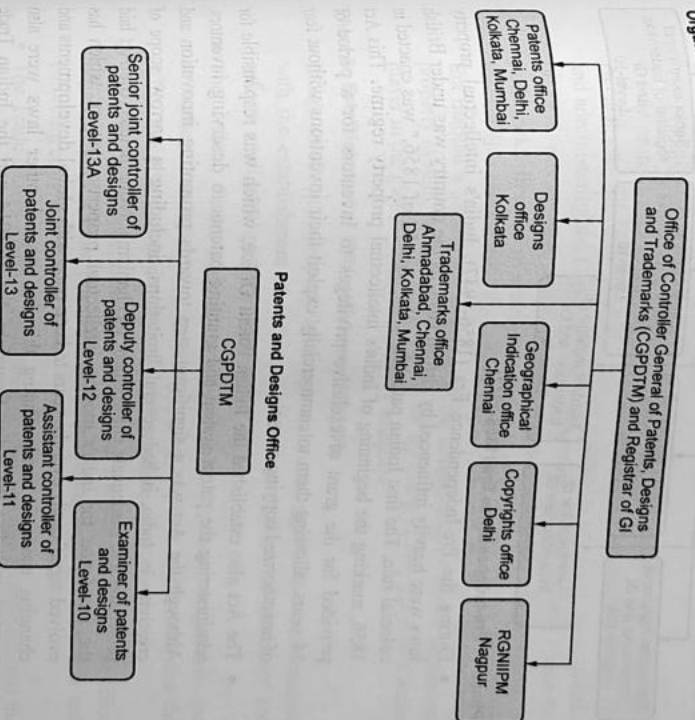
"India's Intellectual Property (IP) landscape is governed by a complex framework of laws, regulations and institutions. The country has a well-established system of IP regulation, with several authorities responsible for administering and enforcing IP laws. The Indian Patent Office, established in 1856, is responsible for granting patents and registering designs. The Copyright Office, established in 1957, oversees the registration of copyrights, while the Trade Marks Registry, established in 1940, is responsible for registering trademarks. Additionally, the Intellectual Property Appellate Board (IPAB), established in 2003, hears appeals against decisions of the Patent Office, Copyright Office and Trade Marks Registry. The Department of Industrial Policy and Promotion (DIPP), under the Ministry of Commerce and Industry, is the nodal agency responsible for promoting and protecting IP rights in India. With the increasing importance of IP in the global economy, India's IPR regulation authorities play a vital role in promoting innovation, creativity and economic growth, while also protecting the rights of creators and inventors. This introduction aims to provide an overview of the different IPR regulation authorities in India, their roles and responsibilities and the laws and regulations that govern IP in India."

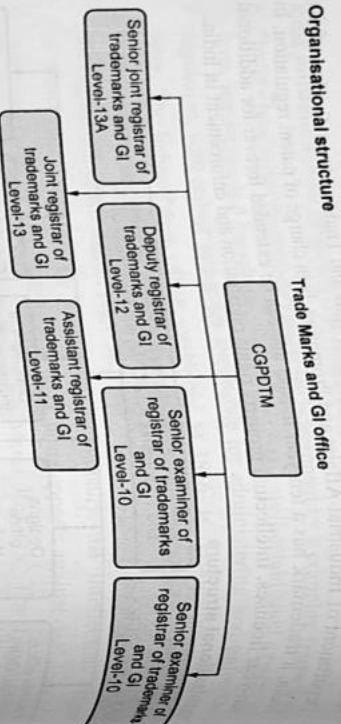
- India signed the Berne Convention as a signatory to Copyright. In India, maintaining a copyright infringement often does not need registration. The department responsible for Industrial Property and Promotion currently administers any and all Intellectual Property Rights (IPRs). In India, the copying of books and the piracy of movies, music, games and software are problems. Patents India's patent laws are outlined in the 2017 Patent Amendment Rules, the 2003 Patent Rules and the 1970 Patents Act. A yearly renewal fee is required and licenses are valid for twenty consecutive years after the date of application submission. The "first to file" rule governs how India's patent system works; if two persons submit applications for the same idea, the first applicant will receive the patent.

- Designs have a ten-year maximum validity period and can be renewed for an additional five years. Trademarks The Trade Marks Act of 1999, as well as the Trade marks regulations of the year 2002 and 2017, constitute India's trademark

rules. The Controller General of Patents, Designs and Trademarks, a division of the Department of Industrial Affairs and Promotion, is in charge of patent regulation. In India, a trademark has a ten-year license that can be extended forever for additional ten-year licenses. Intellectual property rights registration and enforcement in India.

Organisational structure



Organisational structure**Phase 1 : Pre-Independence Era (1856-1947)**

- During the Pre-Independence Era (1856-1947), India's intellectual property laws were heavily influenced by British laws, as the country was under British colonial rule. The first Indian patent law, the "Act VI of 1856," was enacted in 1856, marking the beginning of India's intellectual property regime. This Act provided for the grant of exclusive privileges to inventors for a period of 14 years, allowing them to commercially exploit their inventions without fear of unauthorized copying or use.

- The Act also established the Indian Patent Office, which was responsible for administering the patent system and granting patents to deserving inventors. Although the Act was a significant step towards promoting innovation and creativity in India, it had several limitations, including a narrow scope of protection and inadequate enforcement mechanisms. Nonetheless, the Act laid the foundation for India's modern intellectual property system, which has evolved significantly over the years to keep pace with global developments and changing economic needs. During this era, several other laws were also enacted, including the Indian Copyright Act of 1914 and the Indian Trademarks Act of 1940, which further expanded the scope of intellectual property protection in India.

Phase 2 : Post-Independence Era (1947-1970)

- India's intellectual property landscape underwent significant transformations as the country transitioned from colonial rule to independence. The Indian government recognized the importance of intellectual property in promoting

innovation, creativity and economic growth and took steps to establish a robust intellectual property system. The Indian Patents Act of 1970 was a landmark legislation that replaced the earlier Act VI of 1856 and provided for the grant of patents for a period of 14 years. The Act also established the Indian Patent Office as a separate entity, responsible for administering the patent system and granting patents to deserving inventors.

- Additionally, the Indian Copyright Act of 1957 was enacted, which provided for the protection of original literary, dramatic, musical and artistic works. The Act also established the Copyright Office, responsible for registering copyrights and administering the Copyright Act. Furthermore, the Indian Trade Marks Act of 1958 was enacted, which provided for the registration and protection of trademarks. In order to manage the Trade Marks Act and register trademarks, the Act also created the Trade Marks Registry. Overall, the Post-Independence Era marked a significant milestone in the development of India's intellectual property system, laying the foundation for the country's emergence as a major player in the global intellectual property landscape.

Phase 3 : Establishment of IPR Institutions (1970-1990)

- India's intellectual property landscape underwent significant transformations with the establishment of various institutions and offices to administer and enforce intellectual property laws.
- The Indian Patent Office, established in 1856, was reorganized and strengthened to handle the increasing number of patent applications, and the office was also equipped with modern infrastructure and technology.
- The Copyright Office, established in 1957, was also strengthened and the office began to play a more proactive role in promoting copyright awareness and enforcing copyright laws.
- The Trade Marks Registry, established in 1940, was also reorganized, and the office began to use modern technology to speed up the trademark registration process.
- Additionally, the Indian government established the National Research Development Corporation (NRDC) in 1953, which played a crucial role in promoting innovation and entrepreneurship in India by providing financial and technical support to inventors and entrepreneurs.

- The Indian government also established the Council of Scientific and Industrial Research (CSIR) in 1942, which played a crucial role in promoting scientific research and innovation in India. Furthermore, the Indian government established the Indian Institute of Intellectual Property Training and Research (IIPTAR) in 1985, which provided training and research facilities to intellectual property professionals and played a crucial role in promoting intellectual property awareness in India.
- Overall, the establishment of these institutions marked a significant milestone in the development of India's intellectual property system, enabling the country to better promote innovation, creativity and economic growth.

Phase 4 : TRIPS Agreement and IPR Reforms (1990-2000)

- India's intellectual property landscape underwent significant transformations in response to the country's commitment to the Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) of the World Trade Organization (WTO).
- The TRIPS Agreement, which came into effect in 1995, required India to harmonize its intellectual property laws with international standards, leading to a series of reforms aimed at strengthening the country's intellectual property regime.
- The Indian government amended the Patents Act, 1970, to provide for patent patents in all fields of technology, including pharmaceuticals and agrochemicals and also extended the term of patents to 20 years.
- The Copyright Act, 1957, was also amended to provide for copyright protection in the digital environment and to introduce provisions for the protection of software and digital works.
- Additionally, the Trade Marks Act, 1940, was replaced by the Trade Marks Act, 1999, which introduced provisions for the registration of service marks and collective marks. The Indian government also established the Intellectual Property Appellate Board (IPAB) in 2003, which was responsible for hearing appeals against decisions of the Patent Office, Copyright Office and Trademarks Registry.
- Furthermore, the Indian government launched the "National Intellectual Property Rights Policy" in 1999, which aimed to promote intellectual property awareness and protection in India.

- Overall, the TRIPS Agreement and the subsequent IPR reforms marked a significant milestone in the development of India's intellectual property system, enabling the country to better promote innovation, creativity and economic growth, while also complying with international standards.

Phase 5 : Modernization and Strengthening of IPR Institutions (2000-Present)

- India's intellectual property landscape has undergone significant modernization and strengthening, with a focus on promoting innovation, creativity and economic growth. The Indian government has implemented various initiatives to modernize and strengthen the country's intellectual property institutions, including the establishment of the Intellectual Property Appellate Board (IPAB) in 2003, which has been responsible for hearing appeals against decisions of the Patent Office, Copyright Office and Trade Marks registry.
 - Additionally, the Indian government has introduced e-filing facilities for patent, trademark and copyright applications, making it easier and more efficient for applicants to file and track their applications. The Indian Patent Office has also been strengthened, with the establishment of new patent offices in various cities across the country and the recruitment of additional personnel to handle the increasing workload.
 - Furthermore, the Indian government has launched various initiatives to promote intellectual property awareness and protection, including the "National Intellectual Property Rights Policy" in 2016, which aims to promote innovation and creativity in India, while also protecting the rights of creators and inventors. The Indian government has also established the "Cell for IPR Promotion and Management (CIPAM)" in 2016, which is responsible for promoting intellectual property awareness and protection in India, and for co-ordinating the country's intellectual property policies and initiatives.
 - Overall, the modernization and strengthening of India's intellectual property institutions has enabled the country to better promote innovation, creativity and economic growth, while also protecting the rights of creators and inventors.
- Hence, India's IPR regulation authorities have undergone significant changes and developments over the years, from the pre-independence era to the present day. Today, India has a robust and modern IPR system, with several institutions and initiatives in place to promote innovation, creativity and economic growth.

3.2 The Official Machinery, Controller / Governing Bodies

India's intellectual property system is governed by a complex framework of laws, regulations and institutions. At the heart of this system lies the Official Machinery, comprising the Indian Patent Office, Copyright office and Trade Marks registry, which are responsible for administering and enforcing intellectual property laws. These offices are overseen by Controller / Governing bodies, including the Controller General of Patents, Designs and Trademarks and the Registrar of Copyrights and Trademarks, who exercise significant powers and functions in the grant and administration of intellectual property rights. Understanding the roles and responsibilities of these institutions is crucial to navigating India's intellectual property landscape and leveraging the country's innovation ecosystem.

Official machinery

- The official machinery of India's intellectual property system is comprised of three key institutions : The Indian Patent Office (IPO), the Copyright office and the Trade Marks registry.
- The IPO, established in 1856, is responsible for administering the Patents Act, 1970 and granting patents to deserving inventors. With four branches in Chennai, Delhi, Kolkata and Mumbai, the IPO has granted over 1.5 million patents since its inception, with an average of 40,000 patents granted annually in recent years.
- The Copyright Office, established in 1957, is responsible for administering the Copyright Act, 1957 and registering copyrights for original literary, dramatic, musical and artistic works. Since its inception, the Copyright office has registered over 1.2 million copyrights, with an average of 20,000 copyrights registered annually in recent years.
- The Trade Marks Registry, established in 1940, is responsible for administering the Trade Marks Act, 1999 and registering trademarks for goods and services. With over 2.5 million trademarks registered since its inception, the Trade Marks Registry is one of the largest trademark registries in the world, with an average of 50,000 trademarks registered annually in recent years.

Controller / Governing bodies

- The Controller / Governing Bodies of India's intellectual property system play a crucial role in overseeing the administration of intellectual property laws and ensuring that the rights of creators and inventors are protected.
- The Controller General of Patents, Designs and Trade Marks (CGPDTM) is the highest authority in the Indian Patent Office and is responsible for administering the Patents Act, 1970 and the Trademarks Act, 1999. The CGPDTM is also responsible for overseeing the functioning of the Patent office and the Trade Marks registry.

- The Registrar of Copyrights is responsible for administering the Copyright Act, 1957 and registering copyrights for original literary, dramatic, musical and artistic works. The Registrar of Trademarks is responsible for administering the Trade Marks Act, 1999 and registering trademarks for goods and services.

- These controller / governing bodies have played a significant role in promoting intellectual property awareness and protection in India, with the CGPDTM alone handling over 40,000 patent applications and 50,000 trademark applications annually.

- Additionally, the Registrar of Copyrights has registered over 1.2 million copyrights since its inception, while the Registrar of Trademarks has registered over 2.5 million trademarks since its establishment.

3.3 Powers and Functions

- The powers and functions of India's intellectual property system are vested in the Indian Patent Office, Copyright office and Trade Marks Registry, which are responsible for administering and enforcing intellectual property laws.

- The Indian Patent Office has the power to grant patents, register designs and hear appeals against decisions of the patent controllers. The office also provides technical assistance to inventors and entrepreneurs and has granted over 1.5 million patents since its inception, with an average of 40,000 patents granted annually in recent years.

- The copyright office has the power to register copyrights, hear appeals against decisions of the copyright registrars and provide technical assistance to creators and authors. The office has registered over 1.2 million copyrights since its inception,

with an average of 20,000 copyrights registered annually in recent years. The Trade Marks Registry has the power to register trademarks, hear appeals against decisions of the trademark registrars and provide technical assistance to businesses and entrepreneurs.

- The Registry has registered over 2.5 million trademarks since its establishment with an average of 50,000 trademarks registered annually in recent years. These Powers and Functions enable India's intellectual property system to promote innovation, creativity and entrepreneurship, while also protecting the rights of creators and inventors.

Justification and facts and figures

- The justification for India's intellectual property system lies in its ability to promote innovation, creativity and entrepreneurship, while also protecting the rights of creators and inventors. The facts and figures demonstrate the significance of the intellectual property system in India.
- For instance, the Indian Patent Office has granted over 1.5 million patents since its inception, with an average of 40,000 patents granted annually in recent years. This has led to a significant increase in research and development activities in the country, with India's R&D expenditure increasing from ₹ 39,000 crore (approximately \$5.5 billion USD) in 2007-08 to ₹ 1,23,000 crore (approximately \$17.5 billion USD) in 2019-20.
- Similarly, the copyright office has registered over 1.2 million copyrights since its inception, with an average of 20,000 copyrights registered annually in recent years. This has led to a significant growth in the creative industries in India, with the Indian media and entertainment industry growing from ₹ 63,000 crore (approximately \$9 billion USD) in 2010 to ₹ 1,82,000 crore (approximately \$23 billion USD) in 2020.
- Furthermore, the Trade Marks Registry has registered over 2.5 million trademarks since its establishment, with an average of 50,000 trademarks registered annually in recent years. This has led to a significant increase in brand recognition and protection in the country, with India's brand value increasing from \$1.4 trillion in 2015 to \$2.5 trillion in 2020.
- Overall, the official machinery, Controller / Governing bodies, Powers and Functions of India's intellectual property system form the backbone of the

country's innovation ecosystem. By providing a robust framework for the protection and promotion of intellectual property rights, these institutions play a vital role in encouraging innovation, creativity and entrepreneurship in India. The Indian Patent Office, Copyright Office and Trade Marks Registry, along with the Controller general of Patents, Designs, and Trade Marks, and the Registrars of Copyrights and Trademarks, work in tandem to ensure that intellectual property rights are protected and enforced in a fair and transparent manner. By doing so, they provide a secure and enabling environment for inventors, creators and entrepreneurs to develop and commercialize their innovative ideas, thereby driving economic growth, job creation and social progress in the country. As India emerges as a significant participant in the global innovation scene, the efficient operation of these organizations will be critical in advancing the country's innovation goals and fostering an entrepreneurial culture.

3.4 Filing Procedure of Each Type of IPR in India

The detailed procedures of the filing procedure for each type of IPR in India, along with the different methods used :

patent filing procedure :

1. **Online filing :** The Indian Patent Office (IPO) provides an online filing system, where applicants can submit their patent applications through the IPO's website.
2. **Manual filing :** Applicants can also file their patent applications manually at the IPO's office in Kolkata or at the branch offices in Chennai, Delhi and Mumbai.
3. **E-Filing :** The IPO also provides an e-filing system, where applicants can submit their patent applications electronically.

Steps involved in patent filing :

1. **Filing of patent application :** The applicant files a patent application, which includes a detailed description of the invention, along with drawings and diagrams.
2. **Publication of patent application :** The patent application is published in the patent office journal after 18 months from the date of filing.

3. Examination of patent application :

The patent application is examined by the IPO to determine its patentability.

4. Grant of patent :

If the patent application is found to be patentable, the IPO grants a patent to the applicant.

Trademark filing procedure :**1. Online filing :**

The Trade Marks Registry provides an online filing system where applicants can submit their trademark applications through the Registry's website.

2. Manual filing :

Applicants can also file their trademark applications manually at the Trade Marks Registry's office in Mumbai or at the branch offices in Delhi, Kolkata and Chennai.

3. E-filing :

The Trade Marks Registry also provides an e-filing system, where applicants can submit their trademark applications electronically.

Steps involved in trademark filing :**1. Filing of trademark application :**

The applicant files a trademark application, which includes a representation of the mark, along with a list of goods or services for which the mark is to be used.

2. Examination of trademark application :

The trademark application is examined by the Trade Marks Registry to determine its registrability.

3. Publication of trademark application :

The trademark application is published in the trade marks journal after examination.

4. Registration of trademark :

If the trademark application is found to be registrable, the Trade Marks Registry registers the trademark in favor of the applicant.

Copyright filing procedure :**1. Online filing :**

The Copyright Office provides an online filing system, where applicants can submit their copyright applications through the Office's website.

2. Manual filing :

Applicants can also file their copyright applications manually at the Copyright Office in New Delhi.

3. E-Filing :

The Copyright office also provides an e-filing system, where applicants can submit their copyright applications electronically.

Steps involved in copyright filing :**1. Filing of copyright application :**

The applicant files a copyright application, which includes a copy of the work, along with a statement of claim and a fee.

2. Examination of copyright application :

The copyright application is examined by the copyright office to determine its registrability.

3. Registration of copyright :

If the copyright application is found to be registrable, the copyright office registers the copyright in favor of the applicant.

4. Issue of certificate of registration :

The copyright office issues a certificate of registration to the applicant, which serves as proof of registration.

Design filing procedure :**1. Online filing :**

The Patent Office provides an online filing system, where applicants can submit their design applications through the Office's website.

2. Manual filing :

Applicants can also file their design applications manually at the Patent Office in Kolkata or at the branch offices in Chennai, Delhi and Mumbai.

3. E-Filing :

The Patent office also provides an e-filing system, where applicants can submit their design applications electronically.

Steps involved in design filing :**1. Filing of design application :**

The applicant files a design application, which includes a representation of the design, along with a statement of novelty and a fee.

2. Examination of design application :

The design application is examined by the patent office to determine its registrability.

3. Registration of design :

If the design application is found to be registrable, the Patent office registers the design in favor of the applicant.

4. Issue of certificate of registration :

The patent office issues a certificate of registration to the applicant, which serves as proof of registration.

Geographical indications filing procedure :

- 1. Online filing :** The geographical indications registry provides an online filing system, where applicants can submit their geographical indications applications through the Registry's website.
- 2. Manual filing :** Applicants can also file their geographical indications applications manually at the Geographical indications registry's Office in Chennai.
- 3. E-Filing :** The geographical indications registry also provides an e-filing system where applicants can submit their geographical indications applications electronically.
- 1. A license to reprint a work of literature, drama, music or art (Sections 31, 31A, 31B* and 32A) costs ₹ 5,000 per work.**
- 2. To get a license to broadcast any work to the general public (Section 31(1)(b)) ₹ 40,000/- per applicant / per seat.**
- 3. A cinematograph film (Section 31) requires a licensing fee of ₹ 15,000 per work.**
- 4. A sound recording license (Section 31) costs ₹ 10,000/- per job. Section 31 requires a license to undertake any work in public, which costs ₹ 5,000 per work.**
- 5. Section 31A requires ₹ 5,000/-per work for a license to make available the work or version to the public.**
- 6. ₹ 2,000/-per work is required for the license for the publication of any piece of writing in any format that is helpful to people with disabilities (Section 31 B).**
- 7. ₹ 5,000 per work is required for a request for a license for the manufacture and publish the translated version of an artistic or theoretical work in any of the languages (Section 32 and 32-A).**
- 8. ₹ 500 per work for a registration or copyright application in a: (a) a work of literature, drama, music or art (b) As long as an artistic or literary masterpiece is utilized or has the potential to be utilized in connection with any products or services (Section 45), ₹ 2,000 for each job.**

- 9. For a request to modify the copyright details listed in the National Register of The intellectual property rights for one of the following : (a) A work of literature, drama, music, or art that costs ₹ 200/- per piece (b) As long as ₹ 1,000 -/- is paid for each literary or cultural work that is utilized or has the potential to be used in connection with any products or services (Section 45).**
- 10. For a change in copyright details submitted to the Register of Copyrights for a cinematograph film (Section 45), an application must be submitted for registration of ₹ 2,000/- per work.**
- 11. For a request to register a sound recording's copyright (Section 45) ₹ 2,000/- for each job.**
- 12. For a request to register modifications to copyright details submitted to the Sound Recording Register of Copyrights (Section 45) One thousand rupees each job.**
- 13. The cost of extracting information from Section 47's indexes is ₹ 500 per task.**
- 14. For extracting information from Section 47 of the Register of Copyrights. 500 rupees per job.**
- 15. ₹ 500 -/- per copy for the official reproduction of an excerpt from the Indexes' Register of Copyrights (Section 47)**
- The Indian government Department of Promotion and Industrial Policy India's Ministry of Industry and Commerce for Intellectual Property. The Controller General's Office for patents, designs and trademarks items needed to submit a patent application
 - 1. A cover letter that lists the materials;**
 - 2. A duplicate application for patent grant in Form 1 [sections 7, 54 and 135 and Rule 20(1)]; Section 10; Rule 13: Complete / Provisional specification in triplicate in Form 2**
 - 3. Declaration and Commitment in Form 3 [Rule 12; Section 8]; Form 26 (original) Power of Attorney (Rule 3.3 (a) (ii)); (if one is submitted through attorney)**
 - 4. Inventorship declaration in Form 5 (only for Indian applications; Rule 4.17);**

5. Examination request : F18

6. Required Statutory fees (DD or check).

In conclusion, India's intellectual property system is governed by a complex framework of laws, regulations and institutions. The official machinery, comprising the Indian Patent Office, Copyright Office and Trade Marks Registry, plays a crucial role in administering and enforcing intellectual property laws. The Controller, Governing bodies, including the Controller General of Patents, Designs, and Trade Marks and the Registrars of Copyrights and Trademarks, exercise significant powers and functions in the grant and administration of intellectual property rights. Understanding the filing procedures for each type of IPR in India, including patents, trademarks, copyrights, designs and geographical indications, is essential for individuals and businesses seeking to protect their intellectual property rights in the country. By providing a robust framework for intellectual property protection, India's IPR regulation authorities aim to promote innovation, creativity, and entrepreneurship, while also protecting the rights of creators and inventors.

3.5 Multiple Choice Questions

Q.1 What is the primary role of the Indian Patent Office?

- ☐ a To register trademarks
- ☐ b To grant patents and register designs
- ☐ c To protect copyrights
- ☐ d To promote innovation

Q.2 Which of the following is NOT a type of intellectual property right?

- ☐ a Patent
- ☐ b Trademark
- ☐ c Copyright
- ☐ d License

Q.3 What is the name of the office responsible for administering the Copyright Act, 1957?

- ☐ a Copyright Office
- ☐ b Patent Office
- ☐ c Trade Marks Registry
- ☐ d Geographical Indications Registry

Q.4 What is the term of a patent granted in India?

- ☐ a 10 years
- ☐ b 14 years
- ☐ c 20 years
- ☐ d 25 years

Q.5 Which of the following is a requirement for filing a patent application in India?

- ☐ a A provisional specification
- ☐ b A complete specification
- ☐ c A declaration of inventorship
- ☐ d All of the above

Q.6 What is the name of the authority responsible for registering geographical indications in India?

- ☐ a Geographical Indications Registry
- ☐ b Trade Marks Registry
- ☐ c Patent Office
- ☐ d Copyright Office

Q.7 What is the purpose of the Intellectual Property Appellate Board (IPAB)?

- ☐ a To grant patents
- ☐ b To register trademarks
- ☐ c To hear appeals against decisions of the Patent Office, Copyright Office and Trade Marks Registry
- ☐ d To promote innovation

Q.8 Which of the following is a benefit of registering a trademark in India?

- ☐ a Exclusive rights to use the mark
- ☐ b Protection against infringement
- ☐ c Increased brand recognition
- ☐ d All of the above

Q.9 What is the name of the department responsible for promoting and protecting intellectual property rights in India?

- ☐ a Department of Industrial Policy and Promotion (DIPP)
- ☐ b Ministry of Commerce and Industry
- ☐ c Ministry of Science and Technology
- ☐ d Ministry of Human Resource Development

Q.10 What is the purpose of the Cell for IPR Promotion and Management (CIPAM)?

- ☐ a To grant patents
- ☐ b To register trademarks

- ☐ To promote intellectual property awareness and protection in India
- ☐ To hear appeals against decisions of the patent office, copyright office and trade marks registry

Answer Keys for Multiple Choice Questions

Q.1	b	Q.2	d	Q.3	a	Q.4	c	Q.5	d
Q.6	a	Q.7	c	Q.8	d	Q.9	a	Q.10	c

3.6 Short Questions and Answers

Q.1 Discuss the concept of Intellectual Property Rights (IPR) and its significance in the modern business world.

Ans. : Intellectual Property Rights (IPR) refer to the legal rights granted to creators of original works. IPR is significant in the modern business world because it promotes innovation, creativity and economic growth.

Q.2 What are the benefits and limitations of Intellectual Property Rights (IPR)?

Ans. : The benefits of IPR include promoting innovation and creativity, encouraging entrepreneurship and investment and providing an incentive for creators and inventors to invest in their work. However, IPR has some limitations, including limiting access to knowledge and creating monopolies.

Q.3 Discuss the role of international organizations and agreements in promoting and protecting Intellectual Property Rights (IPR).

Ans. : International organizations and agreements play a crucial role in promoting and protecting IPR worldwide. The World Intellectual Property Organization (WIPO) is a specialized agency of the United Nations that helps countries develop their intellectual property systems.

Q.4 What are the challenges and opportunities of protecting Intellectual Property Rights (IPR) in the digital age?

Ans. : The digital age has presented several challenges and opportunities for protecting IPR. Digital technologies have made it easier for IPR to be copied, distributed and used without permission.

Q.5 Discuss the relationship between Intellectual Property Rights (IPR) and economic development.

Ans. : IPR plays a crucial role in promoting economic growth and development. IPR provides an incentive for creators and inventors to invest in their work, leading to the development of new products and services.

Q.6 Explain the different types of Intellectual Property Rights (IPR), including patents, copyrights, trademarks, industrial designs and geographical indications.

Ans. : The different types of IPR include patents, copyrights, trademarks, industrial designs and geographical indications. Patents protect inventions and new discoveries, while copyrights protect original literary, dramatic, musical and artistic works.

Q.7 Discuss the importance of Intellectual Property Rights (IPR) in promoting innovation and creativity.

Ans. : IPR plays a crucial role in promoting innovation and creativity by providing an incentive for creators and inventors to invest in their work. IPR provides exclusive rights to creators and inventors, allowing them to recoup their investment in research and development.

Q.8 Explain the role of the World Intellectual Property Organization (WIPO) in promoting and protecting Intellectual Property Rights (IPR).

Ans. : WIPO is a specialized agency of the United Nations that helps countries develop their intellectual property systems. WIPO provides technical assistance to countries and it also administers several international treaties related to IPR.

Q.9 Discuss the impact of Intellectual Property Rights (IPR) on economic growth and development.

Ans. : IPR plays a crucial role in promoting economic growth and development by encouraging entrepreneurship and innovation. IPR provides an incentive for creators and inventors to invest in their work, leading to the development of new products and services.

Q.10 Explain the challenges of enforcing Intellectual Property Rights (IPR) in the digital age.

Ans. : The digital age has presented several challenges for enforcing IPR, including the ease with which digital works can be copied and distributed without permission. The internet and other digital technologies have made it easier for creators and inventors to distribute their works, but they have also made it easier for others to infringe on IPR.

Intellectual Property Rights (IPR) and its significance in the modern business world.

Ans. : Intellectual Property Rights (IPR) refer to the legal rights granted to creators of original works, such as inventions, literary and artistic works and symbols, names and images used in commerce. IPR is significant in the modern business world because it promotes innovation, creativity and economic growth by providing exclusive rights to creators and inventors. This allows them to recoup their investment in research and development and to profit from their creations. The main types of IPR include patents, copyrights, trademarks, industrial designs and geographical indications.

3.7 Descriptive Questions and Answers

Q.1 What is the significance of Intellectual Property Rights (IPR) in the modern business world ?

Ans. : Intellectual Property Rights (IPR) refer to the legal rights granted to creators of original works. IPR is significant in the modern business world because it promotes innovation, creativity and economic growth. By providing exclusive rights to creators and inventors, IPR allows them to recoup their investment in research and development and to profit from their creations. This, in turn, encourages creators and inventors to continue innovating and creating new works. Furthermore, IPR also plays a crucial role in promoting loyalty and can attract foreign investment. IPR helps to promote cultural and artistic entrepreneurship and job creation. In addition, IPR helps to promote consumer trust and development. IPR laws and regulations vary from country to country. However, most countries have laws and regulations in place to protect IPR. The protection of IPR is essential for economic growth and development. Without IPR protection, creators and inventors would not have an incentive to invest in their work. This would lead to a lack of innovation and creativity. In conclusion, IPR plays a crucial role in promoting innovation, creativity and economic growth in the modern business world.

Q.2 What are the benefits and limitations of Intellectual Property Rights (IPR)?

Ans. : The benefits of IPR include promoting innovation and creativity, encouraging entrepreneurship and investment and providing an incentive for creators and inventors to invest in their work. IPR also helps to promote consumer trust and loyalty and can attract foreign investment. Furthermore, IPR plays a crucial role in promoting cultural and artistic development. However, IPR has some limitations, including limiting access to knowledge and creating monopolies. IPR can also be expensive to obtain and maintain and the enforcement of IPR can be difficult, especially in countries with weak IPR laws. In addition,

IPR can stifle innovation and limit access to essential goods and services. The limitations of IPR can have negative consequences for economic growth and development. For example, limiting access to knowledge can limit innovation and creativity. Creating monopolies can also limit competition and innovation. In conclusion, while IPR has several benefits, it also has some limitations that need to be addressed.

Q.3 What is the role of International organizations and agreements in promoting and protecting Intellectual Property Rights (IPR)?

Ans. : International organizations and agreements play a crucial role in promoting and protecting IPR worldwide. The World Intellectual Property Organization (WIPO) is a specialized agency of the United Nations that helps countries develop their intellectual property systems. WIPO provides technical assistance to countries and it also administers several international treaties related to IPR. The Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) is an international agreement that sets minimum standards for IPR protection worldwide. Other international agreements, such as the Berne Convention and the Paris Convention, also provide protection for IPR. These agreements help to promote cooperation and coordination among countries in the protection of IPR. International organizations and agreements also provide a framework for countries to develop their intellectual property systems. This helps to promote consistency and coherence in the protection of IPR worldwide. In conclusion, international organizations and agreements play a crucial role in promoting and protecting IPR worldwide.

Q.4 What are the challenges and opportunities of protecting Intellectual Property Rights (IPR) in the digital age?

Ans. : The digital age has presented several challenges and opportunities for protecting IPR. Digital technologies have made it easier for IPR to be copied, distributed and used without permission. However, digital technologies have also made it easier for creators and inventors to protect their IPR online. Digital Rights Management (DRM) technologies can be used to protect digital works from unauthorized copying and distribution. Furthermore, online platforms and marketplaces can provide new opportunities for creators and inventors to monetize their IPR. The challenges of protecting IPR in the digital age include the need for new laws and regulations to address the unique challenges of the digital age. There is also a need for greater international cooperation and coordination in the protection of IPR. The opportunities of protecting IPR in the digital age include the potential for new business models and revenue streams. There is also the potential for greater access to knowledge and information. In conclusion, the digital age has presented several challenges and opportunities for protecting IPR.

Q.5 What is the impact of Intellectual Property Rights (IPR) on economic growth and development?

Ans. : IPR plays a crucial role in promoting economic growth and development by encouraging entrepreneurship and innovation. IPR provides an incentive for creators and inventors to invest in their work, leading to the development of new products and services. This can lead to economic growth and development, as new industries and businesses are created. IPR also helps to promote consumer trust and loyalty and can attract foreign investment. Furthermore, IPR can help to promote innovation and entrepreneurship, which are essential for economic growth and development. In addition, IPR helps to promote cultural and artistic development. IPR laws and regulations vary from country to country. However, most countries have laws and regulations in place to protect IPR. The protection of IPR is essential for economic growth and development. Without IPR protection, creators and inventors would not have an incentive to invest in their work. This would lead to a lack of innovation and creativity. In conclusion, IPR plays a crucial role in promoting economic growth and development by encouraging entrepreneurship and innovation. IPR provides an incentive for creators and inventors to invest in their work, leading to the development of new products and services.

Q.6 How do international organizations and agreements promote and protect Intellectual Property Rights (IPR)?

Ans. : International organizations and agreements play a crucial role in promoting and protecting IPR worldwide. The World Intellectual Property Organization (WIPO) is a specialized agency of the United Nations that helps countries develop their intellectual property systems. WIPO provides technical assistance to countries and it also administers several international treaties related to IPR. The Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS) is an international agreement that sets minimum standards for IPR protection worldwide. Other international agreements, such as the Berne Convention and the Paris Convention, also provide protection for IPR. These agreements help to promote cooperation and coordination among countries in the protection of IPR. International organizations and agreements also provide a framework for countries to develop their intellectual property systems. This helps to promote consistency and coherence in the protection of IPR worldwide. Furthermore, international organizations and agreements help to promote public awareness and understanding of IPR. This helps to promote respect for IPR and to prevent IPR infringement. In conclusion, international organizations and agreements play a crucial role in promoting and protecting IPR worldwide.

Q.7 What are the benefits of protecting Intellectual Property Rights (IPR) in the digital age?

Ans. : Protecting IPR in the digital age has several benefits. Digital Rights Management (DRM) technologies can be used to protect digital works from unauthorized copying and distribution. Furthermore, online platforms and marketplaces can provide new opportunities for creators and inventors to monetize their IPR. Protecting IPR in the digital age also helps to promote innovation and entrepreneurship. IPR provides an incentive for creators and inventors to invest in their work, leading to the development of new products and services. This can lead to economic growth and development, as new industries and businesses are created. In addition, protecting IPR in the digital age helps to promote consumer trust and loyalty. Consumers are more likely to purchase digital works and products from creators and inventors who have protected their IPR. This helps to promote the development of new digital industries and businesses. Furthermore, protecting IPR in the digital age helps to prevent IPR infringement. IPR infringement can have negative consequences for creators and inventors, including financial losses and damage to their reputation.

Q.8 What are the challenges of protecting Intellectual Property Rights (IPR) in the digital age?

Ans. : Protecting IPR in the digital age presents several challenges. Digital technologies have made it easier for IPR to be copied, distributed and used without permission. The ease with which digital works can be copied and distributed without permission makes it difficult to enforce IPR. Furthermore, the digital age has also made it easier for counterfeiters to produce and distribute counterfeit goods. The challenges of protecting IPR in the digital age require new laws and regulations to address the unique challenges of the digital age. There is also a need for greater international cooperation and coordination in the protection of IPR. Furthermore, there is a need for greater public awareness and understanding of IPR. This helps to promote respect for IPR and to prevent IPR infringement. In addition, there is a need for new technologies and tools to help protect IPR in the digital age. Digital Rights Management (DRM) technologies can be used to protect digital works from unauthorized copying and distribution.

Q.9 How does the protection of Intellectual Property Rights (IPR) impact economic growth and development?

Ans. : This can lead to economic growth and development, as new industries and businesses are created. The protection of IPR also helps to promote consumer trust and loyalty and can attract foreign investment. Furthermore, the protection of IPR can help to promote innovation and entrepreneurship, which are essential for economic growth and

development. In addition, the protection of IPR helps to promote cultural and artistic development. IPR laws and regulations vary from country to country. However, most countries have laws and regulations in place to protect IPR. The protection of IPR is essential for economic growth and development. Without IPR protection, creators and inventors would not have an incentive to invest in their work. This would lead to a lack of innovation and creativity. In conclusion, the protection of IPR has a significant impact on economic growth and development.

Q.10 What is the significance of Intellectual Property Rights (IPR) in promoting innovation and creativity?

Ans. : IPR plays a crucial role in promoting innovation and creativity by providing an incentive for creators and inventors to invest in their work. IPR provides exclusive rights to creators and inventors, allowing them to recoup their investment in research and development. This encourages creators and inventors to continue innovating and creating new works. Furthermore, IPR helps to promote consumer trust and loyalty and can attract foreign investment. IPR also plays a crucial role in promoting entrepreneurship and job creation. In addition, IPR helps to promote cultural and artistic development. The protection of IPR is essential for promoting innovation and creativity. Without IPR protection, creators and inventors would not have an incentive to invest in their work. This would lead to a lack of innovation and creativity. In conclusion, IPR plays a crucial role in promoting innovation and creativity by providing an incentive for creators and inventors to invest in their work.

Q00

Unit 4

4

Treaties and Conventions : WIPO & WTO

Syllabus

Introduction to WIPO & WTO. Treaties, conventions and agreements pertaining to each type of IPR 1. Paris convention, Madrid, Hague, Nice, PCT, Lisbon, Locarno, Strasbourg, Vienna Agreement, Budapest Treaty, Nairobi Treaty.

Contents

- 4.1 Introduction to WIPO and WTO : Treaties, Conventions
- 4.2 Treaties, Conventions and Agreements
- 4.3 Multiple Choice Questions with Answers
- 4.4 Short Questions and Answers
- 4.5 Descriptive Questions and Answers